



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ

Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
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Office of the Secretary to the Sangguniang Bayan

FILE COPY

1st Endorsement
January 24, 2024

SBSC 012524 028

OFFICE OF THE SANGGUNANG BAYAN
PRIETO DIAZ, SORSOGON 4711

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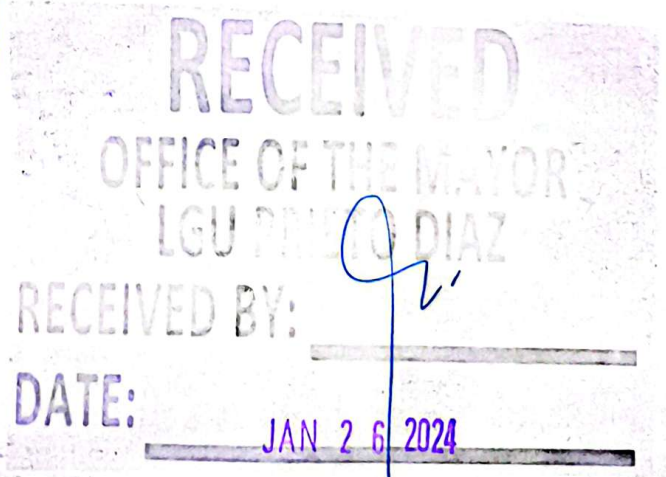
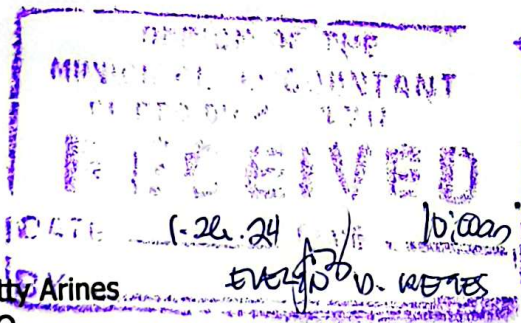
DATE: 012524 TIME: 1:58 PM
BY: NATHAN OPTIZ REF. NO. 028

Respectfully transmitted to **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 017-2024 entitled: "**A RESOLUTION AUTHORIZING HON. ROMEO D. DOMASIAN, MUNICIPAL MAYOR, TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT (DSWD) FIELD OFFICE NO. 5 REPRESENTED BY ITS REGIONAL DIRECTOR, NORMAN S. LAURIO, FOR THE IMPLEMENTATION OF SOCIAL PENSION PROGRAM FOR INDIGENT SENIOR CITIZENS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON**" for his information and appropriate action.

BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:

- Ms. Betty Arines
MSWDO
- Ms. Gemma Ferrer
Municipal Treasurer
- Ms. Maribel Aldon
Municipal Accountant



Received by:
PEERO D. DOMASIAN
MTO
1/26/24

Page 9. Anne
1-26-2024
3:10 pm



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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 15, 2024 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member

ABSENT:

Hon. Rene Joseph D. Domasian	PPSK Pres. – on SPL
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RESOLUTION NO. 017-2024

Introduced by the council

A RESOLUTION AUTHORIZING HON. ROMEO D. DOMASIAN, MUNICIPAL MAYOR, TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT (DSWD) FIELD OFFICE NO. 5 REPRESENTED BY ITS REGIONAL DIRECTOR, NORMAN S. LAURIO, FOR THE IMPLEMENTATION OF SOCIAL PENSION PROGRAM FOR INDIGENT SENIOR CITIZENS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, Social Pension for Indigent Senior Citizens (SocPen) is a government assistance to augment the daily subsistence and other medical needs of qualified indigent and validated senior citizens amounting to and not less than one thousand pesos (P 1000.00) per month, as mandated by RA 11916;

WHEREAS, fund transfer to the LGU is one of the best schemes to facilitate the payout of SocPen to the beneficiaries;

WHEREAS, the LGU shall, among others, facilitate the preparation and approval of payroll and list of beneficiaries; and ensure the timely delivery of payment to the beneficiaries;

WHEREAS, the DSWD shall, among others, review and approve the validated and eligible senior citizens submitted by the MSWDO, FSCAP & OSCA Head and the LCE;

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WHEREAS, on motion of Hon. Albert Destura, duly seconded by Hon. Alice Emano;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize Hon. Romeo D. Domasian, Municipal Mayor, to enter into a Memorandum of Agreement (MOA) with the Department of Social Welfare And Development (DSWD) – Field Office No. 5 represented by its Regional Director, Norman S. Laurio, for the implementation of Social Pension Program For Indigent Senior Citizens in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor, copy furnished Ms. Betty Arines, MSWDO; Ms. Gemma Ferrer, Municipal Treasurer Ms. Maribel Aldon, Municipal Accountant and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT

All Persons by These Presents:

This Memorandum of Agreement made and entered into this _____ day of _____, 2024 at _____ between and among:

The Department of Social Welfare and Development (DSWD)—Field Office V with address at Regional Center Site, Rawis Legazpi City, represented by its Regional Director, **NORMAN S. LAURIO** (herein referred to as **DSWD FO V**;

The Municipal Government of **Prieto Diaz** office address at **Perlas, Prieto Diaz, Sorsogon** represented by **ROMEO D. DOMASIAN**, Municipal Mayor, herein referred as the **LGU**;

WITNESSETH

Whereas, The Department of Social Welfare and Development is mandated to provide social welfare and development programs, particularly through technical assistance and resource augmentation;

Whereas, The DSWD is continuously implementing programs/projects and providing augmentation assistance to the local government units (LGU), non-government organizations, and other partner agencies that would help alleviate poverty and ensure welfare of the disadvantaged and vulnerable groups;

Whereas, The Social Pension for Indigent Senior Citizens is an additional government assistance to augment the daily subsistence and other medical needs of indigent senior citizens;

Whereas, fund transfer to LGU is identified as a mode of payment to fast track the distribution of stipend to beneficiaries and to strengthen partnership with LGUs in the effective delivery of programs and services;

NOW, THEREFORE, for and in consideration of the foregoing premises, hereinafter set forth, the parties hereto agree to undertake the program under the following terms and conditions:

I. THE PROGRAM

The Social Pension for Indigent Senior Citizens is the provision of a monthly stipend to qualified indigent and validated senior citizens amounting to not less than one thousand pesos (PHP 1,000.00) to augment the daily subsistence and other medical needs of the senior citizens as stipulated under Republic Act 11916, otherwise known as "**AN ACT INCREASING THE SOCIAL PENSION OF INDIGENT SENIOR CITIZENS AND**

ACT NO. 752, ENTITLED AN ACT TO MAXIMIZE THE CONTRIBUTION OF SENIOR CITIZENS TO NATION-BUILDING, GRANT BENEFITS AND SPECIAL PRIVILEGES, AND FOR OTHER PURPOSES", AS AMENDED, AND FOR OTHER PURPOSES

II. LEGAL BASES

Philippine Constitution of 1987 states that "In all matters relating to the care, health and benefits of the elderly, the State shall adopt an integrated and comprehensive approach to health development that shall endeavor to make essential goods, health and other social services available to all people at affordable costs, giving priority to the needs of the underprivileged, including the sick, elderly, disabled, women and children."

2. *In the Local Government Code of the Philippines (RA 7160)*, Chapter II, Section 17(b)(2)(iv), provides the role of the municipality: social welfare services, which include programs and projects on child and youth welfare, family and community welfare, women's welfare, and the welfare of the elderly and disabled persons."
3. *Expanded Senior Citizens Act of 2010 (Republic Act 9994)* – An Act Granting Additional Benefits and Privileges to Senior Citizens.
4. *DSWD Administrative Order No. 15 Series 2010* – Guidelines on the Implementation of Social Pensions for Indigent Senior Citizens.
5. *DSWD Administrative Order No. 3 series 2011* – Operational Procedures in line with AO No. 15 series 2010 on the Implementation of Social Pension for Indigent Senior Citizens
6. *DSWD Administrative Order No. 4 series 2012* – Procedure in Processing Replacements for Beneficiaries of the Social Pension
7. *DSWD Administrative Order No. 07 series of 2013*- Amended Guidelines in the Operational Procedure in line with Administrative Order (AO) 15 on the Implementation of the Social Pension for Indigent Senior Citizens
8. *DSWD Memorandum Circular No. 25 series of 2014*- Supplemental Guidelines to Administrative Order (AO) No. 07 series of 2013 for the Implementation of Social Pension for Indigent Senior Citizens through Fund Transfer to LGUs and the Door-to-Door Delivery Scheme
9. *DSWD Administrative Order No. 04 series of 2014*- Amendment to Administrative Order No. 15 Series off 2010, otherwise known as the Guidelines on the Implementation of the Social Pension for Indigent Senior Citizens
10. *DSWD Administrative Order No. 17 series of 2015*- Amendment to the Provisions in the Guidelines (Administrative Order No. 3 series of 2011; Administrative Order No. 4 series of 2012; and Memorandum Circular No. 25 series of 2014) on the Implementation of Social

11. *Memorandum Circular No. 15 series of 2015- Amended Guidelines in Administrative Order No. 03 series of 2011 re: Operational Procedure in line with Administrative Order No. 15 in the Implementation of Social Pension for Indigent Senior Citizens"*
12. *DSWD Memorandum Circular No. 02 series of 2016- Amendment to Memorandum Circular No. 17 series of 2015 re: Release of Stipend to the Replacement Beneficiary*
13. *DSWD Memorandum Circular No. 04 series of 2019- Omnibus Guidelines in the Implementation of the Social Pension for Indigent Senior Citizens*
14. *DSWD Memorandum Circular No. 16 series of 2021- Amendment to Memorandum Circular No. 04 series of 2019 re Omnibus Guidelines in the Implementation of the Social Pension for Indigent Senior Citizens*
15. *DSWD Memorandum Circular No. 17 Series of 2022- Amendment to Memorandum Circular (MC) No. 16 series of 2021 for the Release of Social Pension from Quarterly to Semestral and Supplemental Provision to MC No.4 series of 2019 to include Transfer of Funds to Local Government Units (LGUs)*
16. *Republic Act 11916, otherwise known as "AN ACT INCREASING THE SOCIAL PENSION OF INDIGENT SENIOR CITIZENS AND APPROPRIATING FUNDS THEREFOR, AMENDING FOR THE PURPOSE REPUBLIC ACT NO. 7432, ENTITLED "AN ACT TO MAXIMIZE THE CONTRIBUTION OF SENIOR CITIZENS TO NATION-BUILDING, GRANT BENEFITS AND SPECIAL PRIVILEGES, AND FOR OTHER PURPOSES", AS AMENDED, AND FOR OTHER PURPOSES*

III. ROLES AND RESPONSIBILITIES

a. DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT

1. Facilitate engagement with Local Government Unit (LGU) through signing of Memorandum of Agreement on the transfer of funds and implementation of Social Pension for Indigent Senior Citizens.
2. Review and approve the validated and eligible potential senior citizens submitted by the MSWDO, FSCAP and OSCA heads and the local chief executive (LCE). The approved, validated, and eligible list of qualified senior citizens will be the basis for the semestral release of funds to the local government units (LGUs).
3. Will require the submission of liquidation report verified by the LGU COA auditor.
4. Monitor and provide technical assistance to the LGUs through the Municipal Social Welfare Development Office (MSWDO), Office of Senior Citizens Affairs (OSCA), the Federation of the Senior Citizens Association of the Philippines (FSCAP), and the

5. Conduct regular monitoring and spot checks to validate receipt of payment to the beneficiaries in all LGUs.
6. Conduct orientation, advocacy activities, and meetings as necessary with LGUs, OSCA, FSCAP and the barangay senior citizen's association
7. Demand the refund of all unutilized/disallowed amounts at the end of the year.
8. Comply with DSWD-PMB-SOP-021B or the Procedure for Social Pension Provision to Indigent Senior Citizens.

5. LOCAL GOVERNMENT UNIT (LGU)

1. Facilitate the preparation and approval of the payroll and list of beneficiaries.
2. Coordinate with the OSCA Head, FSCAP members, and senior citizen's associations in the conduct of validation and home visits to identified and potential indigent senior citizens.
3. Submit monthly updates to the list of eligible senior citizens to the DSWD Field Office.
4. The Municipal Treasurer of the LGU or the authorized representative of the LGU shall claim the check/s from the DSWD Field Office and issue an official receipt.
5. Ensure timely delivery of payment to the beneficiaries based on the approved list of beneficiaries/ payroll. The payout should be conducted within 30 days upon receipt of funds.
6. Facilitate creation of a committee composed of OSCA, FSCAP, senior citizen's organizations and other stakeholders to monitor the distribution of payments, status of the beneficiaries and attend/ handle grievance/complaints.
7. Identify and designate staff /focal person for the social pension implementation.
8. Comply with the set deadline for the submission of all the required documents as basis for funding allocation;
9. Submit accomplishment report on the turn-out of payouts to the DSWD.
10. Deposit the amount to the LGU Trust Fund Account for DSWD.
11. Keep separate subsidiary records for the trust liability.

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within the payout of thirty (30) calendar days after the scheduled last payout date.

List of reports to be submitted, as follows:

- (1) Statement of Receipts and Disbursement (SORD)
- (2) Payroll list/paid beneficiaries with signature or fingerprint of the beneficiary.

The reports shall be certified by the accountant and approved by the Head of Province/Municipal LGU in accordance with the Commission on Audit (COA) Circulars 94-013 dated December 13, 1994, COA Circular No. 2016-002 dated May 31, 2016 and 2017-002 dated October 25, 2017.

13. The book of accounts maintained shall be opened for inspection by any authorized representative of the DSWD or the auditor in charge in accordance with existing COA regulations.
14. The LGU shall take full responsibility for the proper disposition/ disbursement of funds for the implementation of the programs in accordance with the existing budgeting, accounting and auditing rules and regulations and shall liquidate the transfer of funds in accordance with Commission on Audit Circular No. 94-013.
15. Comply with the provisions of the DSWD-PMB-SOP-021B of the Procedure for Social Pension Provision to Indigent Senior Citizens.

IV. ACCOUNTABILITY

This agreement shall be observed and complied with by the parties upon receipt of the funds transferred to the LGU and shall be implemented within the applicable semester and in accordance with the terms and conditions stipulated herein. Failure on the part of any party to comply with the provisions of this Agreement will warrant its discontinuance without prejudice to the filing of appropriate administrative and/or criminal actions against responsible officers and employees of the erring party.

Any dispute, controversy or claim arising out of or relating to this MOA shall be settled amicably between the parties. In the event that the dispute remains unresolved, the parties shall submit the issue for arbitration and adjudication in accordance with the law.

V. AMENDMENTS

The MOA may be amended or revoked only upon mutual agreement of both parties, provided that all amendments shall be covered by a Supplemental Agreement signed by both parties, which shall be deemed to be integral parts of this MOA.

IV. EFFECTIVITY

This MOA shall take effect upon signing of the **PARTIES** and shall remain valid and existing unless otherwise revoked or terminated by either one of the parties.

In witness whereof, the parties hereby affix their signatures to this _____ day of _____, 2024.

**DEPARTMENT OF SOCIAL WELFARE
AND DEVELOPMENT**

LGU OF PRIETO DIAZ

NORMAN S. LAURIO

Regional Director
DSWD FOV

Hon. ROMEO D. DOMASIAN

Municipal Mayor

SIGNED IN THE PRESENCE OF:

AMIABELLE N. QUINTANO, CPA

Accountant – DSWD FOV

MARIBEL A. ALDON

Municipal Accountant

VICTORIA C. TAGUM

Protective Services Division Chief

BETTY G. ARINES

MSWDO Department Head

ACKNOWLEDGEMENT

(Republic of the Philippines)
(Municipality of _____)

NAME	GOVT ID #	DATE / PLACE ISSUED

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fore me, this _____ day of _____, 2024, personally appeared:

no. executed the foregoing Memorandum of Agreement consisting of six (7) pages signed on all
ges, including this page on which this acknowledgement is written and acknowledged the same
be their own free and voluntary act and deed.

TNESS MY HAND AND SEAL on the date place first above-written, this _____ day of
_____, 2024 at _____, Philippines.

Notary Public

c. No. _____

ge No. _____

ok No. _____

ies No. 2024